

Line 5

Case Name: *Fresko Meat Distributions, Inc. v. Rigoberto Sanchez, Jr., et al.*

Case No.: 25CV467427

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff and Cross-Defendant Fresko Meat Distributions, Inc. (“Fresko”) moves to compel Defendant Rigoberto Sanchez, Jr., to:

1. Provide further responses to Requests for Inspection Nos. 1, 2, 3, and 4;
2. Make responsive devices and cloud storage accounts available; and
3. Pay monetary sanctions to Fresko in the amount of \$3,600.00 for Fresko’s attorneys’ fees and costs incurred for this Motion.

Notice of Motion (the “Motion”) at 1:4-12 (filed: Dec. 18, 2025).

The Motion came on for hearing on July 17, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

On September 4, 2025, Fresko made these four Requests for Inspection on Mr. Sanchez:

INSPECTION REQUEST NO. 1:

Fresko requests to inspect all computers, telephones, smartphones, including all COMPUTER MEDIA devices, which YOU used in connection with YOUR employment at Fresko.

INSPECTION REQUEST NO. 2:

Fresko requests to inspect all computers, telephones, smartphones, including all COMPUTER MEDIA devices, which YOU have used and I or are using in connection with DM Food Service, Corp.

INSPECTION REQUEST NO. 3:

Fresko requests to inspect all ONLINE STORAGE SYSTEMS which YOU used in connection with Fresko.

INSPECTION REQUEST NO. 4:

Fresko requests to inspect all ONLINE STORAGE SYSTEMS which YOU have used or are using in connection with DM Food Service, Corp.

Declaration of Daniel Muller In Support of Motion to Compel Inspection of Electronic Devices (“Muller Decl.”) at ¶ 2 and Exhibit A (Inspection Requests) thereto.

The Court finds and rules that these four Requests for Inspection are narrowly tailored, reasonable, relevant, and reasonably calculated to lead to the discovery of admissible information. They each apply only to devices and storage accounts that were used in connection with Mr. Sanchez's employment at Fresko or his work as Chief Executive Officer and Chief Financial Officer of Defendant DM Food Service, Corp.

Moreover, the Court **ORDERS** that these four Requests for Inspection will be governed by the following inspection protocol—which Fresko's counsel proposed and sent to Mr. Sanchez's lawyer Mr. Warda on October 17, 2025 (Muller Decl. at ¶ 5 and Exhibit E (containing this inspection protocol), **and which the Court now finds is reasonable in all respects and now governs this inspection in this case:**

Protocol For Examination of Electronic Devices

1. Within _____ business days ¹ of the Parties' execution of the Vendor Services Agreement, Mr. Sanchez and DM Food shall provide the identified electronic devices (see Exhibit A) to Vendor so that it can create forensically identical images of the devices that will enable it to perform the Services. After making the images, Vendor shall return the devices to Mr. Sanchez/ DM Food Service.
2. Vendor shall examine the forensic images of the devices and conduct a search of the devices using the Agreed Search Terms (see Exhibit B). The search shall identify files containing the Agreed Search Terms in the following types of files: (a) user created files accessible on the forensic images of the devices; (b) user created files identifiable on the forensic images of the devices; (c) user created files recoverable from the forensic image of the devices; and (d) electronic mail messages and text messages residing on, or accessible from, the devices ("File List"). To the extent possible, for each file, the File List shall provide the file names, fully qualified filepath in UNC format, date modified, type, MD5 hash, and size of files, (to the extent the data is available). The File List shall also include any deleted or modified files that can be identified from the forensic image.
3. Within seven (7) calendar days of receiving the File List, Mr. Sanchez shall identify all files on the File List that do not contain his personal data or constitute privileged attorney-client communications or attorney work product. Upon request and as needed, Vendor shall provide Mr. Sanchez and his counsel with copies of the files so that they can review the contents of particular files for privacy or privilege. Upon completion of the foregoing, Vendor shall make files which do not contain personal data or privileged communications available to

¹ While the number of business days here in this paragraph was left blank in the inspection protocol sent by Fresko to Mr. Sanchez's attorney Warda on October 17, 2025, the Court now **ORDERS** that this shall be done "within 10 business days" unless all parties agree on a different number of days for completion of this discrete task.

counsel for Fresko. The files shall be designated as "confidential" pursuant to the Parties' Stipulated Protective Order.

4. Within seven (7) calendar days of receiving the File List, Mr. Sanchez shall identify all files on the File List that do contain his personal data or that contain privileged communication or attorney work product. Counsel for Mr. Sanchez shall then provide the list of files containing his personal data to counsel for Fresko. If the Parties agree that the files identified by Mr. Sanchez do contain his personal data and do not contain information or data pertinent to the claims or defenses in the litigation, then the files identified by Mr. Sanchez shall not be provided by Vendor to Fresko or its counsel. If the parties disagree about whether the files identified by Mr. Sanchez contain his personal data and / or whether the files are relevant to the claims or defenses in the litigation, counsel for the parties shall meet and confer regarding any such files. If Mr. Sanchez has asserted that a file or files contain his personal data and he objects to the production of a file or files on that basis, and, in the event that the Parties cannot resolve any such objection informally, they agree to submit any such dispute to the Court for it to determine whether and in what manner the file or files shall be provided to Fresko.
5. Files containing privileged communications and/or work product shall be logged and shall not be subject to production absent agreement by the Parties or an order of the Court.
6. The parties reserve all rights to conduct discovery in the Litigation and reserve all objections to the production of evidence including all relevance, privacy, and privilege objections.

Muller Decl., Exhibit E (inspection protocol).

The use of this inspection protocol to govern the four Requests for Inspection vitiates the objections of Mr. Sanchez. These four Requests for Inspection do *not* seek wholesale inspection of his personal devices; rather, under this now-governing inspection protocol they will be conducted by agreed search terms, which will be subject-matter relevant and limited. And if search terms hit upon personal or privileged data, Mr. Sanchez and his counsel may object before such information is seen by Fresko or its counsel.

Regarding Mr. Sanchez's objections based on privacy and confidentiality, those objections are **OVERRULED** as well because the Court on July 14, 2026 signed, entered, and filed the Protective Order that Fresko's counsel reasonably proposed to Mr. Sanchez's lawyer in on October 17, 2025. Muller Decl. at ¶ 5. As that now filed Protective Order governs all discovery in this case, Mr. Sanchez is free to designate information generated from these four Requests for Inspection as Confidential, if warranted, under that Protective Order.

Mr. Sanchez's objection that these four Requests for Discovery are overly burdensome is unfounded, unsupported, and **OVERRULED**.

Moreover, as the inspection protocol above that governs these four Requests for Inspection expressly provides for a privilege screen to ensure a privilege and work-product review before any information is produced to Fresko, Mr. Sanchez's privilege and work-product objections are unfounded and rejected.

As for Mr. Sanchez's newfangled argument that he does not have to comply with these four Requests for Inspection because the devices and accounts sought are not in his "personal" possession because they are devices of the corporate entity DM Food Service—of which he is the CEO and CFO—that argument is rejected as frivolous. As a direct result of his power, authority, and position as CEO and CFO of Defendant DM Food Service, Corp., the Court now finds and rules that he has constructive possession, custody, and control of these devices and accounts. He has the right and power to obtain access to and receive these devices and accounts on demand. So his objection that he can evade compliance with these four Requests for Inspection because the devices and accounts at issue are his company's but not his "personally" is unfounded, unsupported, and **OVERRULED**.

So Mr. Sanchez's "individual capacity" argument fails, as do all the rest of his objections, evasions, and arguments in Opposition.

Accordingly, within 30 days of today, the Court ORDERS Mr. Sanchez to:

- 1. Provide Further Responses to Requests for Inspection Nos. 1, 2, 3, and 4;**
- 2. Make Responsive Devices and Cloud Storage Accounts Available; and**
- 3. Meet and confer, in the presence of his attorney Mr. Warda, with Fresko's counsel regarding agreed search terms.**

The only remaining issue is over appropriate sanctions for this Motion. The Court has broad discretion and authority Code of Civil Procedure Section 2023.030(a) to impose a reasonable sanction against Mr. Sanchez here: "The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the *reasonable* expenses, including attorney's fees, incurred by anyone as a result of that conduct." C.C.P. § 2023.030(a) (emphasis added). And, lest there be doubt, the Court reads Section 2023.010(d) to mean that failing to timely "respond . . . to an authorized method of discovery" like these Requests for Inspection is a "misuse of the discovery process" (C.C.P. § 2023.010(d)) subject to a reasonable sanction under Section 2023.030(a).

Hence, while the Court here may award Fresko a monetary sanction paid by Mr. Sanchez for Fresko's reasonable attorney's fees and costs incurred for this Motion to Compel Inspection of Electronic Devices and Cloud Storage Accounts, the *amount* of this sanction is within the wide discretion of the Court. Simply put, the Court gets to determine what amount is *reasonable* under these circumstances.

Here, in connection with this Motion, Fresko asks the Court to Order Mr. Sanchez to pay a monetary sanction of \$3,660.00, which equals attorneys' fees of \$3,600.00 (for 6 hours of attorneys' fees at \$600 per hour), plus costs of \$60.00 for the filing fee for this Motion. Muller Decl. at ¶¶ 9-10.

In light of prevailing rates in the relevant market, the Court rules that this billable rate sought of \$600.00 per hour is reasonable.

And, after reviewing all the moving and opposition papers and arguments and precedent raised therein, the Court rules that the six hours of attorney time sought here is a reasonable amount of time for Fresko's lawyers to brief and argue this Motion to Compel Inspection of Electronic Devices and Cloud Storage Accounts.

Moreover, the Court finds that the \$60.00 filing fee sought is a reasonable cost that Fresko occurred for filing this Motion to Compel Inspection of Electronic Devices and Cloud Storage Accounts.

So the total monetary sanction awarded now for this Motion to Compel Inspection of Electronic Devices and Cloud Storage Accounts is \$3,660.00, which equals \$3,600.00 in reasonable attorneys' fees (= 6 hours total at \$600.00 per hour) plus \$60.00 in reasonable cost incurred by Fresko's counsel for filing this Motion. And Mr. Sanchez will pay Fresko this \$3,660.00 sanction within 30 days of today.

Conclusion & Order

Accordingly, the Motion is **GRANTED** as follows. The Court **ORDERS Mr. Sanchez within 30 days of today to:**

- 1. Provide Further Responses to Requests for Inspection Nos. 1, 2, 3, and 4;**
- 2. Make Responsive Devices and Cloud Storage Accounts Available;**
- 3. Meet and confer, in the presence of his attorney Mr. Warda, with Fresko's counsel regarding agreed search terms; *and***
- 4. Pay Fresko \$3,660.00 as a monetary sanction for Fresko's reasonable attorneys' fees and costs incurred for this Motion.²**

² Lest there be the slightest doubt or confusion, this \$3,660.00 to be paid within 30 days of today by Mr. Sanchez as a monetary sanction for this Motion to Compel Inspection of Electronic Devices and Cloud Storage Accounts in this Order is separate and distinct from the \$4,860.00 to be paid within 30 days of today by Mr. Sanchez as a monetary sanction for Plaintiff's separate Motion to Compel Further Responses for Production of Documents that the Court also awarded in a separate Order today.

Both Mr. Sanchez and his attorney Michael S. Warda are put on **NOTICE** that failure to comply with this **ORDER** within 30 days of today may result in escalating monetary sanctions against *both* Mr. Sanchez and attorney Warda as well as non-monetary sanctions against Mr. Sanchez including issue, evidentiary, and terminating sanctions.

SO ORDERED.

Date: July 17, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 6

Case Name: *Muhammad Khan v. Bay Area Criminal Lawyers, PC, et al.*

Case No.: 23CV413334

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Muhammad Khan moves under Code of Civil Procedure Sections 473 and 576 for leave to file a First Amended Complaint (“FAC”). Notice of Motion (the “Motion”) at pp. 1-2 (filed: Dec. 8, 2025).

The Motion came on for hearing on July 17, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Background

On March 30, 2023, Plaintiff Muhammad Khan (“Plaintiff”), initiated this action by filing his Complaint against defendants Bay Area Criminal Lawyers, PC, Alexander Guilmartin (“Guilmartin”), and David Cohen (“Cohen”) (collectively, “Defendants”). Plaintiff brings causes of action for conversion, fraudulent deceit, breach of contract, fraud/intentional misrepresentation, false promise, concealment, unfair business competition, and negligence.

Defendants Cohen and Guilmartin filed demurrers and motions to strike the pleading. On that demurrer and motion to strike, on September 19, 2024 this Court (Hon. Amber Rosen) issued an order after hearing and ruled as follows:

Guilmartin’s demurrer as to the first, seventh and eighth causes of action on the ground of failure to state a claim is **SUSTAINED** without leave to amend. Defendant Guilmartin’s demurrer as to the second, fourth, fifth and sixth causes of action on the ground of failure to state a claim is **SUSTAINED** with 20 days leave to amend. The demurrer as to the third cause of action for breach of contract is **OVERRULED**.

[...]

[T]his Court similarly **SUSTAINS with 20 days leave to amend** Cohen’s demurrer as to the **second, fourth, fifth, and sixth causes of action** on the ground of failure to state a claim.

(Court’s September 19, 2024 Order at 5:13-15 [emphasis in original].) (filed: Sept. 19., 2024).

The Court ruled that the motions to strike were moot because the Court granted leave to amend. (*Id.* at 6:12).